

The Narcotic Drugs and Psychotropic Substances (National Fund for Control of Drug Abuse) Rules, 2006

Source: <https://indiankanoon.org/doc/152060695/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

0

]

Union of India - Act

The Narcotic Drugs and Psychotropic Substances (National Fund for Control of Drug Abuse) Rules, 2006

UNION OF INDIA

India

The Narcotic Drugs And Psychotropic Substances Act, 1985

The Narcotic Drugs and Psychotropic Substances (National Fund for Control of Drug Abuse) Rules, 2006

Rule THE-NARCOTIC-DRUGS-AND-PSYCHOTROPIC-SUBSTANCES of 2006

Published on 1 January 2006

Commenced on 1 January 2006

[This is the version of this document from 1 January 2006.]

[Note: The original publication document is not available and this content could not be verified.]

Central Government Act

The Narcotic Drugs and Psychotropic Substances (National Fund for Control of Drug Abuse) Rules, 2006

1.

Short title and commencement.?

(1)

These rules may be called the Narcotic Drugs and Psychotropic Substances (National Fund for Control of Drug Abuse) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions. In these rules, unless the context otherwise requires,

(a)

‘Act’ means the Narcotic Drugs and Psychotropic Substances Act, 1985 (61 of 1985

);

(b)

‘Controlling Officer’ means an officer who is entrusted, by the Central Government, with the responsibility of controlling the receipt of money in the Fund and incurring expenditure from the Fund.

(c)

‘Governing Body’ means the Governing Body constituted by the Central Government under sub-section (3) of section 7A of the Act;

(d)

‘Form’ means the Form appended to these rules;

(e)

‘Fund’ means the National Fund for Control of Drug Abuse constituted under section 7A of the Act;

(f)

all other words and expressions used in these rules and not defined, but defined in the Act, shall have the same meanings respectively assigned to them in the Act.

3.

Procedure for remittance of grant to the Fund.

(1)

Every grant made by any person or institution under clause (c) of sub-section (1) of section 7A of the Act shall be made by crossed cheque or demand draft in favour of the National Fund for Control of Drug Abuse and sent to the Joint Secretary (Revenue), Ministry of Finance, Department of Revenue, North Block, New Delhi 110001, who shall, on receipt of such cheque or demand draft issue a receipt to such person or institution making such grant.

(2)

All grants made under sub-rule (1) shall be unconditional and irrevocable.

4.

Receipt of money. All moneys received under sub-section (1) of section 7A of the Act shall be credited to the Fund without delay by the Controlling Officer.

5.

Procedure for grant of money from the Fund.

(1)

Any Department of the Central Government or of State Government(s) or any organisation(s) (hereinafter called as the ‘Applicant’) desirous of obtaining money from the Fund shall submit an application in Form A appended to these rules, together with a project report.

(2)

Every application made under sub-rule (1) shall be sent to the Joint Secretary (Revenue), Ministry of Finance, Department of Revenue, North Block, New Delhi 110001.

6.

Grant of money from the Fund.

(1)

The Central Government may require the Applicant to furnish further information or clarification regarding the activities and matters connected with the Applicant to enable it to consider payment out of the Fund.

(2)

Subject to the conditions specified in sub-rule (3), the Governing Body may sanction money out of the Fund to an Applicant within the limits notified by the Central Government and the Central Government may, on the recommendation of the Governing Body sanction such amount of money to an Applicant, as it considers appropriate.

(3)

Every Applicant who has been sanctioned money out of the Fund under sub-rule (2) shall, (a) apply the money to meet the expenditure incurred in connection with the measures taken for combating illicit traffic in, or controlling abuse of, narcotic drugs and psychotropic substances or controlled substances for all or any of the purposes specified in sub-section (2) of section 7A of the Act;

(b)

submit an annual return ending on the last day of March of every year, within fifteen days of the end of the preceding year to the Central Government in Form 'B' appended to these rules;

(c)

maintain regular books of accounts, showing receipt and expenditure, which shall provide a true and fair view of the financial position of such Applicant; and

(d)

be bound by the terms and conditions stipulated in the letter of sanction of money issued by the Central Government.

(4)

The money provided to the Applicant, and the assets acquired or created out of such money, shall be deemed to be entrusted to the Applicant for the purposes specified in sub-section (2) of section 7A of the Act.

(5)

The Applicant shall retain, hold and use the money received by it from the Fund, and all assets acquired with such moneys, solely for the purposes specified in sub-section (2) of section 7A of the Act and for no other purpose.

(6)

If the Central Government has reasons to believe that an Applicant, (i) has failed to carry out the purposes specified in sub-section (2) of section 7A of the Act; or

(ii)

is likely to be wound up; or

(iii)

is unable to maintain and preserve the assets acquired or created out of the money received from the Fund; or

(iv)

is unable to perform or is likely to commit breach of its obligations under the grant of money, the Central Government may, at any time, revoke the grant of money, and in such case the Applicant shall be disentitled to retain the moneys paid out of the Fund or the assets acquired or created thereby:

1

[Provided that no grant of money shall be revoked without giving the grantee a notice to show cause within thirty days from the date of the notice as to why the grant should not be revoked for the reasons indicated in the notice and if the grantee so requests, without giving him a reasonable opportunity of being heard in person: Provided further that where the Central Government is of the opinion that the money that was granted is still with the grantee and that the grantee is likely to fritter away or squander the money, so that it is beyond the reach of the Central Government in case of revocation, it may revoke the grant and give notice to show cause to the grantee subsequent to the revocation and if the grantee so requests, give him a reasonable opportunity of being heard in person.]

7.

Communication of sanctions.

All financial sanctions and orders issued by the Central Government under these rules shall be communicated to the Audit Officer or the Accounts Officer, as the case may be, in accordance with the procedure specified under the General Financial Rules, 2005.

8.

Accounts and audit.

(1)

The Central Government shall maintain proper accounts and other relevant records as per the Accounting Procedure as at Annexure I, appended to these rules, and prepare a statement of accounts giving therein the details of the amount credited to the Fund and expenditure incurred therefrom, in consultation with the Comptroller and Auditor General of India.

(2)

The accounts of the Central Government under sub-rule (1) shall be audited by the Comptroller and Auditor General of

India at such intervals as may be specified by him.

(3)

The Comptroller and Auditor General of India shall have the same rights and privileges and authority, in connection with the audit of the Fund and accounts of the Central Government maintained under sub-rule (1) and also in connection with the audit of the accounts of the Applicant, as he has in connection with the audit of General Accounts and, in particular, shall have the rights to demand production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Central Government or the Applicant.

9.

Publication of annual report and statement of accounts.?

The annual report giving an account of activities financed out of the Fund together with the statement of accounts referred to in section 7B of the Act shall be published in the Official Gazette as soon as possible after the end of each financial year and, in any case not later than 31st December of succeeding year.

10.

Application of the provisions of General Financial Rules, 2005.?

The provisions of the General Financial Rules, 2005 as amended from time to time shall, as far as may be, apply to the grant of money by the Central Government under these rules.

THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES (NATIONAL FUND FOR CONTROL OF DRUG ABUSE) RULES, 2006¹ FORM B [See rule 6(3)(b)] FORMAT FOR ANNUAL RETURNS TO BE SUBMITTED BY THE APPLICANT RECEIVING PAYMENT OUT OF THE NATIONAL FUND FOR CONTROL OF DRUG ABUSE

1. Year in respect of which returns filed
2. Name of the Applicant
3. Name of the Government/Non-Government Organisation who established the Applicant
4. Address of the Applicant
5. Amount spent by the Applicant during the year
6. The amount out of item 5 spent from sources other than the Fund
7. Results achieved and extent to which targets have been achieved
8. Further action to be taken, giving specific recommendations for revision of the proposal in case the targets are not likely to be achieved.
9. Name, designation and telephone number of the officer who is authorised to sign the return.

Date..... Place..... Signature -----

1. Vide G.S.R. 177 (E), dated 24th March, 2006, published in the Gazette of India, Extra., Pt. II, Sec. 3(i), dated 24th March, 2006.

1. Ins. by G.S.R. 232(E), dated 2nd April, 2009 (w.e.f. 2-4-2009).

Related AI tags, queries and research notes

Translation